

Bondi v. Vanderstok
145 S.Ct. 857 (2025).
Supreme Court of the United States.

Justice [GORSUCH](#) delivered the opinion of the Court.

For decades, the Gun Control Act has regulated the sale of firearms. This case poses the question whether the Act's longstanding mandates also apply to those who make and sell a new product—“weapon parts kits.”

I
A

Shortly after the assassinations of Senator Robert F. Kennedy and Dr. Martin Luther King, Jr. stunned the Nation, Congress adopted the Gun Control Act of 1968 (GCA). [Pub. L. 90–618, 82 Stat. 1213](#). Existing gun control measures, Congress found, allowed criminals to acquire largely untraceable guns too easily. See 82 Stat. 225. Often, for example, criminals could evade state laws regulating in-person sales simply by purchasing guns through the mail. In response, Congress adopted a number of new mandates. As a result, many of those now engaged in importing, manufacturing, or dealing in firearms must obtain federal licenses, keep records of their sales, and conduct background checks before transferring firearms to private buyers. [18 U.S.C. §§ 922\(t\), 923\(a\), \(g\)\(1\)\(A\)](#). The Act also requires importers and manufacturers to mark their firearms with serial numbers.

These mandates serve at least two ends. The background-check requirement seeks to keep “guns out of the hands of criminals.” [Abramski v. United States](#), 573 U.S. 169, 180, 134 S.Ct. 2259, 189 L.Ed.2d 262 (2014). The licensing, recordkeeping, and serialization requirements, meanwhile, aim “to assist law enforcement authorities in investigating serious crimes,” [ibid.](#), by permitting them “to determine where, by whom, or when” a firearm was manufactured and to whom it was “sold or otherwise transferred.” 87 Fed. Reg. 24652 (2022). Today, thousands of law-enforcement agencies nationwide depend on the Act's tracing system to link firearms involved in crimes to their owners. *Id.*, at 24659.

The GCA's mandates apply to “firearm[s].” See [§§ 922\(t\), 923\(a\), \(i\)](#). And the law defines that key term broadly. Under [§ 921\(a\)\(3\)](#), a “firearm” includes “(A) any weapon (including a starter gun) which will or is designed to or may readily be converted to expel a projectile by the action of an explosive; (B) the frame or receiver of any such weapon; (C) any firearm muffler or firearm silencer; or (D) any destructive device.” Thanks to this generous definition, the GCA has long been understood to reach everything from run-of-the-mill rifles to novelty umbrella guns.

Recent years, however, have witnessed profound changes in how guns are made and sold. When Congress adopted the GCA in 1968, “the milling equipment, materials needed, and designs were far too expensive for individuals to make firearms practically or reliably on their own.” 87 Fed. Reg. 24688. With the introduction of new technologies like 3D printing and reinforced polymers, that is no longer true. Today, companies are able to make and sell weapon parts kits that individuals can assemble into functional firearms in their own homes. *Ibid.*

These kits vary widely both in how complete they come and in how much work is required to finish them. At one end of the spectrum, a kit may lack essential parts and “requir[e] substantial effort, specialized expertise, uncommon equipment, and a significant amount of time” before anyone can fire a shot. Brief for

Former Acting Chief of ATF Firearms Technology Branch et al. as *Amici Curiae* 35. At the other end, some kits “contain all components necessary” for “a complete pistol” and can be completed in perhaps half an hour using commonly available tools. App. to Pet. for Cert. 236a.

Sales of these kits have grown “exponential[ly].” Brief for Petitioners 2. Home hobbyists enjoy assembling them. [VanDerStok v. Garland](#), 86 F.4th 179, 185 (CA5 2023). But criminals also find them attractive. *Id.*, at 195. That is largely due to how the kits are sold. Some manufacturers and dealers take the position that weapon parts kits do not qualify as “firearms” subject to the GCA. As a result, they say, they are free to sell their products without obtaining a federal license, conducting background checks, maintaining sales records, or marking components with serial numbers. 87 Fed. Reg. 24652.

The upshot? “[P]olice departments around the Nation” have “confronted an explosion of crimes” involving these “ghost guns.” Brief for Petitioners 8. In 2017, law-enforcement agencies submitted about 1,600 ghost guns to the federal government for tracing. App. to Pet. for Cert. 194a. By 2021, that number jumped to *864 more than 19,000. *Ibid.* Efforts to trace the ownership of these weapons, the government represents, have proven “almost entirely futile.” Brief for Petitioners 8.

B

In 2022, the Bureau of Alcohol, Tobacco, Firearms and Explosives adopted a new rule designed to combat the proliferation of ghost guns. See 87 Fed. Reg. 24652. In doing so, the agency invoked authority Congress granted it to prescribe “rules and regulations as are necessary to carry out” the GCA. [18 U.S.C. § 926\(a\)](#). Two provisions in the agency's new rule are of special relevance here.

The first addresses weapon parts kits directly. Recall that [§ 921\(a\)\(3\)](#) extends the GCA's mandates to “firearms,” a term subsection (A) defines as “any weapon (including a starter gun) which will or is designed to or may readily be converted to expel a projectile by the action of an explosive.” In its new rule, ATF interpreted this language to embrace weapon parts kits “that [are] designed to or may readily be completed, assembled, restored, or otherwise converted to expel a projectile by the action of an explosive.” [27 C.F.R. § 478.11 \(2023\)](#) (defining “firearm”). Those who make or sell kits that satisfy this test, ATF said, must comply with the GCA by securing federal licenses, conducting background checks, keeping sales records, and marking their products with serial numbers. To decide whether a kit “may readily be converted” into a working gun, ATF added, it will consider several factors, including the time, ease, expertise, and equipment required to complete a weapon, as well as the availability of other necessary parts. *Ibid.* (defining “readily”). . . .

C

Before ATF's new rule took effect and ATF could begin efforts to enforce its new rule, various gun manufacturers, at-home gunsmiths, and others filed what they described as a “facial” challenge under the Administrative Procedure Act (APA). See, e.g., BlackHawk Mfg. Complaint in No. 22–619 (ND Tex., Oct. 20, 2022), ECF Doc. 99, p. 25. They argued that the GCA cannot be fairly read to reach weapon parts kits or unfinished frames or receivers. As a result, the plaintiffs contended, ATF's regulations in [§ 478.11](#) and [§ 478.12\(c\)](#) purporting to extend the GCA's mandates to these products could not be enforced against anyone and had to be “set aside” as impermissibly issued “in excess of statutory ... authority.” [5 U.S.C. § 706](#).

At summary judgment, the district court agreed with the plaintiffs and vacated the agency's new rule.

[*VanDerStok v. Garland*, 680 F.Supp.3d 741, 766 \(ND Tex. 2023\)](#). On appeal, the Fifth Circuit largely affirmed. . . .

II

As presented to us, this case does not ask us to resolve whether ATF's new regulations in [§ 478.11](#) and [§ 478.12](#) may be lawfully applied to particular weapon parts kits or unfinished frames or receivers. Instead, the plaintiffs have pursued what the lower courts called a “facial” pre-enforcement challenge to the agency's authority to regulate *any* weapon parts kits or unfinished frames or receivers. [680 F.Supp.3d at 766](#); [86 F.4th at 186](#). In a challenge like that, the government represents, “the possibility that [ATF's regulation] may be invalid as applied’ in some cases ‘does not mean that the regulation is facially invalid.’ Instead, [the plaintiffs’] burden is to show that the Rule itself is inconsistent with the statute on its face.” Nowhere in either of their briefs before us do the plaintiffs dispute that assessment. Accordingly, we take it as given for our purposes here.

In doing so, we turn first to the question whether [§ 478.11](#)’s provisions addressing weapon parts kits are inconsistent on their face with the GCA. The answer turns on [subsection \(A\) of § 921\(a\)\(3\)](#). There, remember, the GCA authorizes ATF to regulate “any weapon (including a starter gun) which will or is designed to or may readily be converted to expel a projectile by the action of an explosive.” Inhering in this language are two requirements. First, a “weapon” must be present. Second, that “weapon” must meet one of three criteria: It must be able to expel a projectile by the action of an explosive, designed to do so, or susceptible of ready conversion to operate that way. As the Fifth Circuit saw it, [§ 478.11](#)’s provisions addressing weapon parts kits are facially invalid because no weapon parts kit can ever satisfy the statute's two requirements. We disagree because, to our eyes, at least some kits will satisfy both.

A

To appreciate why, it helps to work with an example. Take a weapon parts kit featured prominently in the record before us: Polymer80's “Buy Build Shoot” kit. It comes with “all of the necessary components to build” a Glock-variant semiautomatic pistol. App. to Pet. for Cert. 219a. And it is so easy to assemble that, in an ATF test, an individual who had never before encountered the kit was able to produce a gun from it in 21 minutes using only “common” tools and instructions found in publicly available YouTube videos. *Id.*, at 220a. The first picture below shows the kit; the second depicts the gun the kit yields.

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Now, assess whether the “Buy Build Shoot” kit meets subsection (A)’s two tests, and start with the question whether Polymer80’s offering qualifies as a “weapon.” When Congress adopted the GCA in 1968, that term meant what it means today: “an instrument of offensive or defensive combat ... [such] as a club, sword, gun, or grenade.” Webster’s Third New International Dictionary 2589 (def. 1) (1966); accord, 1 Concise Oxford English Dictionary 1476 (def. 1) (5th ed. 1964). As a result, ATF’s authority under subsection *868 (A) extends only to instruments of combat, not to other things like industrial tools or toy guns that may “expel a projectile by the action of an explosive.” It is a feature of the statute the agency itself has long

acknowledged. See 87 Fed. Reg. 24684.

Plainly, the finished “Buy Build Shoot” kit is an instrument of combat. No one would confuse the semiautomatic pistol pictured above with a tool or a toy. Of course, as sold, the kit requires some assembly. But a number of considerations persuade us that, even as sold, the “Buy Build Shoot” kit qualifies as a “weapon.”

Consider, first, a feature of ordinary language. The term “weapon” is an artifact noun—a word for a thing created by humans. Artifact nouns are typically “characterized by an intended function,” rather than by “some ineffable ‘natural essence.’” S. Grimm & B. Levin, *Artifact Nouns: Reference and Countability*, in 2 *Proceedings of the 47th Annual Meeting of the North East Linguistic Society (NELS 47)* 55 (2017). Reflecting as much, everyday speakers sometimes use artifact nouns to refer to unfinished objects—at least when their intended function is clear. An author might invite your opinion on her latest *novel*, even if she sends you an unfinished manuscript. A friend might speak of the *table* he just bought at IKEA, even though hours of assembly remain ahead of him. In both cases, the artifact noun fits because the intended function of the unfinished object is obvious to speaker and listener alike.

The term *weapon* can work this way, too. Imagine a rifle disassembled for storage, transport, or cleaning. It may take time to render the rifle useful for combat, but its intended function is clear. And, as a matter of every day speech, that rifle *is* a weapon, whether disassembled or combat ready. In the same way and for the same reason, an ordinary speaker might well describe the “Buy Build Shoot” kit as a “weapon.” Yes, perhaps a half hour of work is required before anyone can fire a shot. But even as sold, the kit comes with all necessary components, and its intended function as instrument of combat is obvious. Really, the kit's name says it all: “Buy Build *Shoot*.”

Next, consider what the statute itself has to say about the term “weapon.” Subsection (A) tells us that the term “includ[es] a starter gun.” [§ 921\(a\)\(3\)\(A\)](#). A starter gun, of course, normally fires blanks, not bullets, and is usually found at sporting events, not in combat. See [United States v. Hall](#), 396 F.2d 841, 842, n. 2 (CA4 1968). To be sure, a starter gun can be converted to live fire using a power tool commonly available at hardware stores. See [United States v. Mullins](#), 446 F.3d 750, 755 (CA8 2006). For someone with no “specialized knowledge,” the process can take “less than an hour.” *Ibid.* But, notably, the statute teaches that a starter gun is a “weapon” *before* anyone invests that work. All of which indicates that Congress used that term, as an ordinary speaker might, to embrace some unfinished instruments of combat like Polymer80's product.

Finally, notice another feature of the statute. If Congress had wanted to regulate only operable firearms, it could have simply addressed “weapons” that can “expel a projectile by the action of an explosive.” But Congress didn't stop there. Instead, Congress explained that a “weapon” also qualifies for regulation if it is either “designed” to accomplish that function or “capable of being “readily ... converted” to do so. [§ 921\(a\)\(3\)\(A\)](#). Those latter provisions necessarily contemplate that some things short of fully operable firearms will qualify as “weapons.” And if that is true, it is difficult to see how the easy-to-assemble “Buy Build Shoot” kit might not be among them.

Of course, to implicate the Act, not only must a “weapon” be present. That weapon must meet one of the just-recounted conditions. At a minimum, that means a weapon must be capable of being “readily ... converted to expel a projectile by the action of an explosive.” *Ibid.* As we see it, the “Buy Build Shoot” kit satisfies that test, too.

Begin with what we can glean about the “ready-conversion” standard from the statute. We know that Congress's direction that a starter gun is a “weapon” would be pointless unless a starter gun satisfies all subsection (A)’s terms. For the statute to make sense, then, a starter gun must be able to fire bullets, designed to do so, or capable of ready conversion to operate that way. Generally, however, a starter gun meets neither of the first two conditions, for its barrel is deliberately blocked. That leaves only one serious possibility: It must be that a starter gun “can readily be converted to expel projectiles by the action of an explosive.”

That turns out to tell us all we need to know about the statute's “ready conversion” test. As we have seen, a person without any specialized knowledge can convert a starter gun into a working firearm using everyday tools in less than an hour. And measured against that yardstick, the “Buy Build Shoot” kit can be “readily converted” into a firearm too, for it requires no more time, effort, expertise, or specialized tools to complete. If the one meets the statutory test, so must the other.

Admittedly, our reasoning here has its limits. Just because some kits, like Polymer80's, qualify as “weapons” that “can readily be converted” into working firearms does not mean all do. . . . Weapon parts kits vary widely. See Part I–A, *supra*. Not all come as complete as the “Buy Build Shoot” kit. Some, too, may require more time, expertise, or specialized tools to finish. And at some point a kit may be so incomplete or cumbersome to assemble that it can no longer fairly be described as a “weapon” capable of “read[y] ... conver[sion]” into a working firearm.

While we recognize the problem, this case does not require us to untangle exactly how far subsection (A) reaches. The plaintiffs argue only that [§ 478.11](#)’s provision addressing weapon parts kits is facially inconsistent with the statute. The Fifth Circuit adopted the same view after coming to the unqualified conclusion that weapon parts kits can never satisfy the statute's two tests. To resolve this case, it is enough to say those assessments are mistaken. Because at least some weapon parts kits satisfy both of subsection (A)’s tests, [§ 478.11](#) is not facially invalid. Future cases may present other and more difficult questions about ATF's regulations. But we take cases as they come and today resolve only the question posed to us. * * *

The plaintiffs close by asking us to invoke the rule of lenity or the doctrine of constitutional avoidance But neither lenity nor avoidance has any role to play where “text, context, and structure” decide the case. [Van Buren v. United States](#), 593 U.S. 374, 393–394, 141 S.Ct. 1648, 210 L.Ed.2d 26 (2021). . . . The GCA embraces, and thus permits ATF to regulate, some weapon parts kits . . . , including those we have discussed. Because the court of appeals held otherwise, its judgment is reversed, and the case is remanded for further proceedings consistent with this opinion.

JUSTICE JACKSON, concurring.

To me, the nature of the claim at issue in this case makes its resolution quite straightforward. No one disputes that Congress delegated rulemaking authority to the Executive Branch through the Gun Control Act of 1968, as amended. See 18 U. S. C. §926(a). Nor is it contested that the Bureau of Alcohol, Tobacco, Firearms and Explosives, an Executive Branch agency, relied on that delegated authority to promulgate the challenged rule. Before us, respondents claim only that portions of the resulting rule exceed the agency’s statutory authority. See 5 U. S. C. §706(2)(C). Our judicial charge, then, is to evaluate the scope of the Gun Control Act’s delegation of authority to the agency, and to determine whether the agency’s actions transgressed those bounds. That limited exercise should be dispositive.

Proper excess-of-authority review must focus on actual statutory boundaries, not on whether the agency’s

discretionary choices overlap precisely with what we, as unelected judges, would have done if we were standing in the agency’s shoes. And where, as here, the statute’s boundaries do not foreclose the agency’s action, the excess-of-authority claim should meet its end. I concur because I read the Court’s opinion to be consistent with this view.

Separate concurrences by Justices SOTOMAYOR and KAVANAUGH are omitted.

Justice [THOMAS](#), dissenting.

* * *

IV

The Court also granted certiorari to decide whether a “firearm” can “include a weapon parts kit.” [27 C.F.R. § 478.11](#). Statutory text, context, and structure confirm that this aspect of the Rule also exceeds the scope of the statute. The majority’s novel artifact-noun methodology cannot alter this conclusion.

A

[Section 921\(a\)\(3\)\(A\)](#)’s definition of “firearm” includes “any weapon” that “will or is designed to or may readily be converted to expel a projectile by the action of an explosive.” Thus, while an object that “may readily be converted” into a gun qualifies as a “firearm” if that object is *already* a “weapon,” an object that is not already a weapon does not.

The ordinary meaning of “weapon” does not include weapon-parts kits. At the time of the GCA’s enactment, the word “weapon” was understood to mean “an instrument of offensive or defensive combat ... something to fight with ... something (as a club, sword, gun, or grenade) used in destroying, defeating, or physically injuring an enemy.” Webster’s Third New International Dictionary 2589 (1966) (Webster’s); accord, *ante*, at 867 – 868. A weapon-parts kit is not a weapon until it is converted into an operable gun. It is no more “something to fight with,” than the sort of “unformed block of metal” that the Rule expressly exempts from regulation, see [27 C.F.R. § 478.12\(c\)](#). The operable gun pictured in the majority opinion is “an instrument” one may use in “combat.” The unfinished, inoperable kit pieces are not. Because these pieces do not constitute a “weapon,” they do not fit within subsection (A)’s statutory definition. . . .

B

Holding otherwise, the majority reasons that, as a “thing created by humans,” the term “weapon” may encompass not only weapons that are “combat ready,” but also those that are “disassembled,” and that the term thus captures weapon-parts kits “[i]n the same way and for the same reason.” The majority again conjures up the “artifact noun” to support an interpretation that is incompatible with our traditional methods of statutory construction.

Unlike a disassembled firearm, a weapon-parts kit requires more than merely assembling the parts to become a functional gun. Special tools and an indeterminate amount of time are required to convert an unfinished weapon-parts kit into a functional weapon. Thus, even assuming that the ordinary meaning of “weapon” does not resolve whether the term includes weapon-parts kits, at minimum the term “weapon” cannot encompass weapon-parts kits in “the same way” it covers disassembled firearms.

The majority also insists that the term “weapon” should cover “some unfinished instruments of combat” like weapon-parts kits because [§ 921\(a\)\(3\)\(A\)](#) includes starter guns, which, like weapon-parts kits, can be converted into functional weapons. *Ante*, at 868. But, because a starter gun does not fit within the ordinary meaning of “weapon,” Congress’s decision to expand that term to cover that one, specific object does not imply that Congress intended the word “weapon” to also cover *other* objects that are not already weapons.

And, both a disassembled rifle and a starter gun are “weapons” for the reason a weapon-parts kit is not: Disassembled rifles and starter guns typically have functional frames or receivers. See *supra*, at 889.

V

The text, context, and structure of [§ 921\(a\)\(3\)](#) leave little doubt that weapon-parts kits are not “firearms,” and that the unfinished contents of these kits are neither “frame[s]” nor “receiver[s].” But, even if it were reasonable to treat artifact nouns differently, the Government would—at most—demonstrate statutory ambiguity. And, when a statute with criminal applications is ambiguous, the rule of lenity applies. * * *

Justice [ALITO](#)’S dissent is omitted.